

CASE SUMMARY

Vimla Kumari Pathak v. Tata Power Delhi Distribution Ltd.

RCA (DJ) No. 77/26 (Civil Appeal) | Court of the District Judge-06, Central District, Tis Hazari Courts, Delhi

COURT	Court of the District Judge-06, Central District, Tis Hazari Courts, Delhi
JUDGE	Ms. Shivali Sharma, District Judge-06
DATE OF JUDGMENT	16 April 2026 (date of inspection / offence: 21 November 2025)
PARTIES	Vimla Kumari Pathak W/o Sh. Ram Murti Pathak, R/o H. No. 353, Gali No. 4, Near Main Market, Sant Nagar, Burari, Delhi-110084 (appellant/plaintiff) v. Tata Power Delhi Distribution Ltd. (respondent)
STATUTES INVOKED	Sections 126, 127, 135 & 145, Electricity Act, 2003; Order 7 Rule 11(d), Code of Civil Procedure, 1908
RESULT	Civil appeal dismissed. The rejection of the plaint under Order 7 Rule 11(d) CPC — as barred by Section 145 of the Electricity Act — is affirmed. The appellant’s remedy against the Section 126 assessment lies in the statutory appeal under Section 127, not in a civil suit.

CHARGE BEFORE THE COURT

Point for determination: Whether a civil suit challenging an inspection report and an assessment order for *unauthorised use* of electricity under Section 126 of the Electricity Act, 2003 is maintainable, or is barred by Section 145 (ouster of civil-court jurisdiction), the appropriate remedy being the statutory appeal under Section 127; and whether the facts disclosed theft under Section 135 (criminal) or unauthorised use under Section 126 (civil).

FACTS

The appellant owns a multi-storey residential property at Burari with several domestic connections and tenants. On 21 November 2025, TPDDL inspected the premises and found the domestic supply being used for an unauthorised non-domestic purpose — paying-guest (PG) accommodation. It issued a provisional assessment order (28 November 2025) and a final assessment order (20 January 2026) raising a demand of over Rs. 1.40 lakh, and the connections were later disconnected.

The appellant sued civilly to challenge the inspection report and the assessment. The trial court rejected the plaint under Order 7 Rule 11(d) CPC as barred by Section 145 of the Electricity Act, which ousts the jurisdiction of civil courts in matters an assessing officer or appellate authority is empowered to determine. The present first appeal challenges that rejection.

REASONING OF THE COURT

HEADNOTE

Using a sanctioned domestic connection for a non-domestic purpose (here, PG accommodation) is *unauthorised use* under Section 126 — a civil, assessment-based liability — not theft under Section 135. The remedy against a Section 126 assessment is the statutory appeal under Section 127; Section 145 bars a civil suit, and the plaint was rightly rejected under Order 7 Rule 11(d) CPC. The appeal is dismissed.

The dispute was one of unauthorised use, not theft. The inspection found a sanctioned domestic connection being put to a non-domestic use (PG accommodation) — the paradigm of *unauthorised use* under Section 126, assessed civilly by the assessing officer, and not a dishonest abstraction punishable as theft under Section 135.

Section 145 bars the civil court. Section 145 ousts the jurisdiction of civil courts in matters an assessing officer or appellate authority is empowered to determine; a Section 126 assessment is exactly such a matter, so a civil suit to challenge it does not lie.

The statutory appeal under Section 127 is the exclusive remedy. The Act provides a complete code: an aggrieved consumer must appeal under Section 127 before the appellate authority. On *Yogesh Nayyar*, *Deepak Santiya*, *Joginder Kumar Goyal* and *B L Kantroo*, and the scheme explained in *Sarjiwan Singh*, the civil suit was not maintainable.

The plaint was rightly rejected under Order 7 Rule 11(d). A plaint barred by law is to be rejected under Order 7 Rule 11(d) CPC; the trial court's rejection was correct, and the first appeal against it fails.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 126 vs Section 135 — Unauthorised Use is not Theft

The Court drew the cardinal distinction: Section 126 addresses the *unauthorised use* of electricity — putting a lawful supply to a purpose other than that for which it was sanctioned (here, a domestic connection used for PG accommodation) — and gives rise to a civil, assessment-based liability fixed by the assessing officer. Section 135 addresses *theft* — a dishonest abstraction — and is criminal. Diverting a lawful connection to an unauthorised purpose falls under Section 126, not Section 135.

Sections 127 & 145 — Statutory Appeal and the Civil-Court Bar

The remedy against a Section 126 assessment is the statutory appeal under Section 127 before the appellate authority. Section 145 ousts the jurisdiction of civil courts in matters the assessing officer or appellate authority is empowered to decide, so a civil suit challenging a Section 126 assessment is barred and liable to rejection under Order 7 Rule 11(d) CPC.

HELD

The suit challenging the Section 126 assessment was barred by Section 145 of the Electricity Act, the appellant's remedy lying in the statutory appeal under Section 127. The trial court's rejection of the plaint under Order 7 Rule 11(d) CPC is affirmed. **The appeal is dismissed.**

SIGNIFICANCE

The set's only appellate decision and its clearest statement of the Section 126/135 boundary. Four propositions stand out:

- **Unauthorised use is not theft.** Diverting a sanctioned domestic connection to a non-domestic use (PG accommodation) is Section 126 unauthorised use — civil and assessment-based — not Section 135 theft.
- **Section 145 ousts the civil court.** Civil courts have no jurisdiction over matters the assessing/appellate authority is empowered to decide.
- **Section 127 is the exclusive remedy.** An aggrieved consumer must pursue the statutory appeal, not a civil suit (*Yogesh Nayyar*; *B L Kantroo*).
- **A barred plaintiff is rejected under Order 7 Rule 11(d).** Where the suit is barred by Section 145, rejection of the plaintiff is the correct course.

CITATIONS

The authorities below were relied on by the Court in dismissing the appeal.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sarjiwan Singh v. DVB</i> Delhi HC	On the statutory scheme for assessment of unauthorised use under Section 126 and its distinct, non-criminal character.	Relied on
<i>Yogesh Nayyar v. TPDDL</i> Delhi (CS No. 821/16)	A civil suit challenging a Section 126 assessment is barred; the remedy lies in the statutory appeal.	Relied on
<i>Deepak Santiya v. BSES Yamuna Power Ltd.</i> Delhi (CS No. 2085/21)	The civil court's jurisdiction is ousted by Section 145 in matters the assessing/appellate authority is empowered to decide.	Relied on
<i>Joginder Kumar Goyal v. BSES Rajdhani Power Ltd.</i> Delhi HC, W.P.(C) 17658/2022	Unauthorised-use disputes are to be pursued through the Section 127 appellate mechanism, not the civil court.	Relied on
<i>B L Kantroo v. BSES Rajdhani Power Ltd.</i> Delhi HC, RFA(OS) No. 12/2008	Reaffirming the bar of Section 145 against civil suits touching a Section 126 assessment.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.